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Case Number: 24NNCV03705 Hearing Date: September 14, 2026 Dept: P

[TENTATIVE] ORDER GRANTING DEFENDANT MASHCOLE AND JERRY UY'S MOTION TO BIFURCATE PUNITIVE DAMAGES

I. INTRODUCTION

Plaintiffs Qing Ye Li, individually and as successor in interest to the Estate of Xingya Zhang, and Hui Hung Zhang (collectively, "Plaintiffs") filed this action on August 20, 2024, alleging causes of action for (1) negligent security, (2) negligence, (3) battery, and (4) elder abuse against Defendants Jade Court San Gabriel, LP; Starboard Seaview Manager, Inc.; Jerry Yu; Mia Constance Williams; Jaumaul Rashaud Jackson; and Does 1 through 100. The action arises from the death of Xingya Zhang on December 26, 2022.

On August 13, 2026, Defendants Mashcole Property Management, Inc. ("Mashcole") and Uy filed the instant motion to bifurcate punitive damages. The motion is unopposed.

II. LEGAL STANDARD

Civil Code section 3295, subdivision (d) provides, in relevant part, that on application of any defendant, the Court "shall" bifurcate trial with respect to punitive damages. (Civ. Code, § 3295, subd. (d); see *Torres v. Auto. Club of So. California* (1997) 16 Cal.4th 771, 777-78 ["[S]ection 3295(d) requires a court, upon application of any defendant, to bifurcate a trial so that the trier of fact is not presented with evidence of the defendant's wealth and profits until after the issues of liability, compensatory damages, and malice, oppression, or fraud have been resolved against the defendant; see also *Holdgrafer v. Unocal. Corp.* (2008) 160 Cal.App.4th 901, 919 ["While the statute refers only to evidence of the defendant's financial condition, in practice bifurcation under this section means that all evidence relating to the amount of punitive damages is to be offered in the second phase, while the determination whether the plaintiff is entitled to punitive damages (i.e., whether the defendant is guilty of malice, fraud or oppression) is decided in the first phase along with compensatory damages."] [emphasis in original].) Unlike motions for discretionary bifurcation, requests for mandatory bifurcation of punitive damages determinations are essentially motions in limine, which may be brought at any time before trial. (See *Las Palmas Assocs. v. Las Palmas Ctr. Assocs.* (1991) 235 Cal.App.3d 1220, 1241.)

III. ANALYSIS

Defendants Mashcole Property Management, Inc. and Jerry Uy (collectively, "Defendants") move to bifurcate the punitive damages phase of trial pursuant to Civil Code section 3295(d) and to exclude evidence of Defendants' wealth or financial condition until the jury determines liability, awards actual damages, and finds that Defendants acted with malice, oppression, or fraud. (Motion, pp. 2–3.)

Defendants argue that bifurcation is mandatory under Civil Code section 3295(d) upon a defendant's application. They contend that evidence concerning their financial condition is irrelevant to liability and compensatory damages and would create a substantial risk of prejudice if presented before the jury determines whether Plaintiffs are entitled to punitive damages. (Motion, pp. 3, 5-6.)

Civil Code section 3295(d) provides that, upon application of a defendant, the court shall preclude evidence of that defendant's profits or financial condition until after the trier of fact returns a verdict awarding actual damages and finds the defendant guilty of malice, oppression, or fraud under Civil Code section 3294. The California Supreme Court has explained that section 3295(d) requires bifurcation so that evidence of a defendant's wealth and profits is withheld until liability, compensatory damages, and malice, oppression, or fraud have been resolved against the defendant. (Torres v. Automobile Club of Southern California (1997) 15 Cal.4th 771, 777-778.)

Here, Defendants have requested bifurcation under section 3295(d). Evidence of Defendants' profits or financial condition will not be presented to the jury unless and until the jury awards Plaintiffs actual damages and finds that a Defendant acted with malice, oppression, or fraud. If those findings are made, the trial may then proceed to a second phase to determine the amount of punitive damages. The Court finds that this procedure avoids potential prejudice from the jury considering Defendants' financial condition when deciding the threshold issues, while still allowing Plaintiffs to pursue punitive damages if the statutory requirements are met.

Thus, the Court GRANTS Defendants' motion to bifurcate punitive damages.

IV. CONCLUSION & ORDER

The Court GRANTS Defendants' motion to bifurcate punitive damages.

Defendants are to give notice.

Dated: September 14, 2026 JARED D. MOSES

JUDGE OF THE SUPERIOR COURT

***** [TENTATIVE] ORDER DENYING AS MOOT PLAINTIFF'S MOTION TO COMPEL FURTHER RESPONSES TO REQUESTS FOR PRODUCTION, SET THREE

I. INTRODUCTION

Plaintiffs Qing Ye Li, individually and as successor in interest to the Estate of Xingya Zhang, and Hui Hung Zhang (collectively, "Plaintiffs") filed this action on August 20, 2024, alleging causes of action for (1) negligent security, (2) negligence, (3) battery, and (4) elder abuse against Defendants Jade Court San Gabriel, LP; Starboard Seaview Manager, Inc.; Jerry Yu; Mia Constance Williams; Jaumaul Rashaud Jackson; and Does 1 through 100. The action arises from the death of Xingya Zhang on December 26, 2022.

On August 25, 2026, Plaintiff filed the instant motion to compel further responses to Requests for Production ("RFPs"), Set Three. On September 8, 2026, Defendant Mashcole Property Management, Inc. ("Mashcole") filed an opposition. No reply has been filed.

II. LEGAL STANDARD

A motion to compel a further response to interrogatories or production of documents must be noticed within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing. (Cal. Code of Civ. Proc. §§ 2030.300(c), 2031.310(c); see also *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1409; *Vidal Sassoon, Inc. v. Superior Court* (1983) 147 Cal.App.3d 681, 685.) Otherwise, the propounding party waives any right to compel further responses. (Id.) The 45-day time limit is mandatory and jurisdictional. (*Sexton*, supra, 58 Cal. App. 4th at 1410.)

An unverified response is tantamount to no response at all. (See *Appleton v. Superior Court* (1988) 206 Cal.App.3d 632, 636.) However, objections to interrogatories and requests for production are not required to be verified because “objections are legal conclusions interposed by counsel, not factual assertions by a party.” (*Blue Ridge Insurance Co. v. Superior Court* (1988) 202 Cal.App.3d 339, 345.)

C.C.P. §2033.290 provides, in pertinent part, as follows:

(a) On receipt of a response to requests for admissions, the party requesting admissions may move for an order compelling a further response if that party deems that either or both of the following apply:

- (1) An answer to a particular request is evasive or incomplete.
- (2) An objection to a particular request is without merit or too general

III. ANALYSIS

Plaintiff moves to compel Maschle to provide further responses to RFP, Set Three Nos. 70-93 and 95. Plaintiff argues that Maschle initially served largely objections only responses, failed to provide verifications, and failed to produce responsive documents. Plaintiff, thus, seeks further verified, code-compliant responses, production of responsive documents and a privilege log for any documents withheld on privilege grounds. (Motion, pp. 2, 5-6.)

In opposition, Maschle maintains that the motion is moot, because on September 8, 2026, it served verified further responses to RFP Nos. 70-93 and 95, produced responsive documents within its possession, custody, or control and provided a privilege log. (Opposition, pp. 3-4; Strata Decl., ¶ 2, .)

Here, given that Maschle provided further responses to the RFPs at issue, and Plaintiff did not file a reply challenging those responses, the Court finds the motion MOOT and DENIES the motion to compel further responses.

The Court DENIES motion to compel further RFP, Set Three Nos. 70-93 and 95 as MOOT.

IV. ORDER

The Court DENIES motion to compel further RFP, Set Three Nos. 70-93 and 95 as MOOT.

Plaintiff is to give notice.

Dated: September 14, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT